

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 11, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.
Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 4	26CV488397	Santa Clara Valley Water District v. San Jose Water Company et al.	Click LINE 4 or scroll down for ruling.
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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV413103	Borton Petrini, LLP v. Joseph Commendatore	Order of examination: <u>parties to appear.</u>
Line 2	24CV449540	Main Street Shopping Center, LLC et al v. Una Mas Restaurants, Inc.	Order of examination: <u>parties to appear.</u>
Line 3	25CV473089	Leticia Camacho v. Ana Ocampo-Aguilera	Motion to withdraw as counsel for plaintiff: <u>parties to appear.</u>

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Calendar Line 1

Case Name: Daniel Scholl v. Amiel Wade et al.

Case No.: 25CV479669

Defendant Wade Litigation, APC's motion to compel (1) initial responses to form interrogatories; and (2) further responses to requests for production, set one. Notice is proper and no timely opposition was filed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.) Plaintiff filed an opposition on June 10, 2026, one day before the hearing. The court has not considered the untimely filing. The parties are reminded that the court will not consider filings that do not comply with applicable Code of Civil Procedure filing deadlines. (See Code Civ. Proc., §§ 1005 [governing most motions]; 437c [governing motions for summary judgment or adjudication].)

Meet and Confer Requirements

Defendant's meet and confer efforts—consisting of a single meet and confer letter sent by U.S. Mail—do not comply with the current version of Code of Civil Procedure section 2016.040, subdivision (a), which requires “facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” (Italics added.) The parties are admonished to undertake meaningful, good faith meet and confer efforts before filing any further discovery motions.

Initial Responses to Form Interrogatories

Plaintiff did not timely respond to the form interrogatories propounded by defendant. An attachment to plaintiff's untimely opposition to the motion to compel indicates plaintiff responded to the form interrogatories on June 8, 2026, after the deadline to oppose the motion to compel. The court has not considered the adequacy of those untimely responses and expresses no opinion on whether they are code-compliant. The motion to compel initial responses to form interrogatories is GRANTED. (Code Civ. Proc., § 2030.290.) Plaintiff is ordered to provide verified responses to the form interrogatories, without objections, no later than July 10, 2026.

Further Responses to Requests for Production, Set One

Set one of defendant's request for the production of documents includes 33 requests. Plaintiff responded to the requests, indicating that he would produce certain documents in response to some of the requests. The court agrees with defendant's argument that those responses are deficient because they (1) are unverified (Code Civ. Proc., §2031.250; *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1358); and (2) do not include a statement of compliance (Code Civ. Proc., § 2031.220). An attachment to plaintiff's untimely opposition to the motion to compel indicates plaintiff supplemented his responses on June 8, 2026, after the deadline to oppose the motion to compel. The court has not considered the adequacy of those untimely supplemental responses and expresses no opinion on whether they are code-compliant. The motion to compel further responses to requests for production is GRANTED.